

**LAW OFFICES OF
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255 LIVINGSTON STREET, 4TH FL.

BROOKLYN NY, 11217

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Attorneys for plaintiff

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LUKE ARTHUR

Plaintiff(s),

against

THE CITY OF NEW YORK,

P.O. KEITH MCDOWELL "JOHN DOE"

1'through'2 inclusive, the names of:

the last defendants being fictitious,

the true names of the defendants

being unknown to the plaintiff.

Defendant(s).

:
: **UNITED STATES DISTRICT COURT**
: **EASTERN DISTRICT OF NEW YORK**

:
: CASE No.: 10 CV 1038

:
: CIVIL ACTION

:
: **AMENDED COMPLAINT**

:
: **PLAINTIFF DEMANDS**

:
: TRIAL BY JURY

:
: (RJD) (JMA)

-----X-----
TAKE NOTICE, the Plaintiff, Luke Arthur, hereby appears in this action by his attorneys, The Law Offices of O'keke & Associates, P.C., and demands that all papers be served upon them, at the address below, in this matter.

Plaintiffs, Luke Arthur, by their attorneys, O'keke & Associates, P.C., complaining of the defendants, The City of New York, and "John Doe" and "Jane Doe" 1'through'3 collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].

2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant police officers were in the process of illegally and unlawfully arresting plaintiff.

JURISDICTION

3. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiff by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
4. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
5. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

PARTIES

6. Plaintiff resides in Brooklyn, New York and is a resident of the State of New York.
7. Defendant P.O. Keith McDowell, is a New York City Police Officer, defendants "John Doe" 1'through'2 are unknown police officers for the City of New York, all acting under color of state law. They are being sued in both their individual and official capacity.

8. The Defendant, City of New York is a municipality in the State of New York and employs the Defendants Police Officers.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

9. On or about January 3, 2009, at approximately 8:15AM, defendant officers' employed with the New York City Police Department and assigned to the Housing Police Department, PSA-2, without probable cause and/or justification, arrested the plaintiffs on or about 43rd Street, in Brooklyn, County of Kings, City and State of New York. The plaintiff was arrested unlawfully, detained and maliciously prosecuted for several months, before all charges being dismissed.
10. Prior to and after effecting the illegal arrest against the plaintiff, plaintiff had just come from his apartment, entered his truck and was warming his truck, when he was approached by officer McDowell together with police officers John Doe 1 and 2. The defendant officers asked plaintiff where he was coming from and what he was doing, to which plaintiff informed them that he had just come from his apartment and was warming his truck. The officers then instructed the plaintiff to exit his truck and place his hands behind his back. Plaintiff complied and he was handcuffed. When plaintiff enquired as to why he was being handcuffed, the defendant officers informed plaintiff that it was for their safety while they searched his truck. Shortly after, plaintiff was then placed in a police van and transported to the PSA 2 precinct. That once at the precinct, the plaintiff was searched again, and then plaintiff heard the one officer telling the arresting officer that he'll tell the arresting officer what to charge him with. Plaintiff was then placed in a holding cell with three other arrestees where he was held for approximately three (3) hours. Thereafter plaintiff was transported to the Central Booking Divisions of the Kings County Criminal Court, where he was charged with 'PL 220.39, Criminal Sale of a Controlled Substance in the Third Degree'. Plaintiff was subsequently detained for several months while being maliciously prosecuted. All charges against the defendant were dismissed on July 31, 2009.

11. That plaintiff was unlawfully arrested, without any probable cause and or just reason and maliciously prosecuted for several months, illegally detained during that period.
12. That even though the defendant police officers knew, or should have known based on the facts that no crime had been committed by the plaintiff, they still proceeded to arrest plaintiff, unlawfully detain, and maliciously prosecute plaintiff just to intimidate plaintiff.
13. That at no time during the arrest was the plaintiff read his Miranda rights or provided with any food, drinks, or adequate restroom services.
14. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff act against or in violation of the laws of New York State, or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the defendants.
15. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer injuries, including but not limited to emotional distress, nightmares, and unwarranted severe anger bouts and individual ailments some or all of which may be permanent.
16. The unlawful arrest of plaintiff, plaintiff's wrongful imprisonment because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.
17. As a direct and proximate result of defendants' actions, plaintiffs suffered and continue to suffer, emotional distress, nightmares, and unwarranted severe anger bouts and individual ailments, some or all of which may be permanent.
18. As a direct and proximate result of their unlawful detention, confinement, Plaintiff has lived in terror of his attack, he continues to suffer from nightmares, is fearful of going outside, driving or being anywhere there is police presence. Further, when he sees police, he suffers various emotional attacks, in addition, he has been unable to function normally which has caused severe

strains and breakdown in his personal relationships, in and outside of his respective home.

19. As a direct and proximate result of defendants' actions, plaintiff was arrested, and detained unlawfully without any just cause or probable cause.
20. As a direct and proximate result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.
21. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.
22. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct.
23. The actions of defendants, acting under color of State law, deprived plaintiffs of their rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in his person and property, to be free from the excessive use of force, abuse of process, and the right to due process.
24. By these actions, defendants have deprived plaintiffs of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.
25. Plaintiffs continue to suffer physically and emotionally due to the actions of the defendants.
26. This action has been commenced within three years upon which the claim is based.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

27. Plaintiff hereby restates paragraphs 1-26 of this complaint, as though fully set forth below
28. By detaining and imprisoning the plaintiff without justification, probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendants' Officers, deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution.
29. In addition, the Defendants officers conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
30. The Defendants Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers named and unnamed were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of their constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth and Fourteenth Amendments to the United States Constitution.
31. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

False Arrest and False Imprisonment--all defendants

32. Plaintiffs hereby restates paragraph 1-31 of this complaint, as though fully set forth below
33. The Defendant Officers wrongfully and illegally detained, and imprisoned the Plaintiff.
34. The wrongful arrest and imprisonment of the Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
35. At all relevant times, the Defendant Officers acted forcibly in apprehending, detailing, and imprisoning the Plaintiffs.
36. During this period, the Plaintiff were unlawfully and wrongfully assaulted, harassed, detained, maliciously prosecuted and threatened.
37. Throughout this period, the Plaintiff was unlawfully, wrongfully, and unjustifiably detained, deprived of his liberty, and imprisoned.
38. All of the foregoing occurred without any fault or provocation on the part of the Plaintiff.
39. Defendants, their officers, agents, servants, and employees were responsible for plaintiffs' detention and imprisonment during this period of time. Defendant City of New York, as employer of the Officers Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
40. The Defendant Officers acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiff.
41. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS A THIRD CAUSE OF ACTION:

Intentional Infliction of Emotional Distress-all Defendants

42. The Plaintiffs hereby restates paragraph 1-41 of this complaint, as though fully set forth below.
43. The Defendant Officers engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
44. Plaintiffs' emotional distress has damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious detention and imprisonment by the Defendants Officers.
45. Defendants, their officers, agents' servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiffs at the hands of the Defendant Officers named and unnamed, defendant City of New York, as employer of the Officers, is responsible for their wrongdoing under the doctrine of respondeat superior.
46. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

WHEREFORE, plaintiffs respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Officers Defendants in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
4. Such other and further relief as this Court may deem

necessary in the interest of justice.

Dated: October 24, 2010
Brooklyn, New York

O'keke & Associates, PC.



Patrick O'keke, Esq. (PO-2861)
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Brooklyn, New York 11217
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Civil Case Number:10 CV 1038 Attorney: PATRICK O'KEKE [PO2861]

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

(RJD) (JMA)

LUKE ARTHUR

Plaintiff(s),

against

THE CITY OF NEW YORK, "JOHN DOE" AND "JANE DOE" 1'through'3
inclusive, the names of the last defendants being fictitious, the
true names of the defendants being unknown to the plaintiff.

Defendant(s).

**SUMMONS & AMENDED COMPLAINT
DEMAND TRIAL BY JURY**

O'KEKE & ASSOCIATES, PC.

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To:

Defendants/Attorney(s) For Defendants.

Service of a copy of the within is hereby admitted

Dated:_____

Attorney(S) For:_____
